HEADNOTE

> *"An application to change the language of proceedings before the Central Division does not assert a claim; it is rather a procedural application, and it must be added that it is an extraordinary application. Unlike in the decision Microsoft/Suinno (Order of 21 August 2024, UPC-CoA-454/2024), the rejection of such an application does not result in the summary dismissal of a claim because it has no prospect of success (R. 334(h) RoP). The RoP clearly does not provide for a change of language of proceedings before the Central Division. Article 49(6) UPCA determines the language of the patent as the language of proceedings before the Central Division without exception."*

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Procedural order

PATENT
EP 3 762 212

DISPOSABLE 3D PRINTER CARTRIDGE

KEYWORDS
Change of procedural language before the ...

Article 49 Language of proceedings at the Court of First Instance

SUMMARY
The Court of Appeal Luxembourg ruled on a procedural order. The patent at issue relates to a disposable 3D printer cartridge. According to the headnotes of the decision, an application to change the language of proceedings before the Central Division is procedural in nature. It is not a claim. This type of application is furthermore classified as extraordinary. The rejection of such an application does not trigger summary dismissal under Rule 334(h) RoP. This differs from the Microsoft/Suinno precedent. In particular, the Rules of Procedure contain no provision allowing language changes before the Central Division. Article 49(6) UPCA establishes the patent language as the mandatory language of proceedings before the Central Division without exception.